

GZ: 2022-0.876.190 dated December 15, 2022 (Case Number: DSB-D124.1413/22)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

APPEAL

The Data Protection Authority decides on the data protection complaint of Ignaz A*** (complainant) dated October 30, 2022 against the Embassy of the Republic N*** in Vienna (defendant) for violation of the right to confidentiality as follows:

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The complaint is dismissed.

Legal bases: Art. 4 No. 7, Art. 51 para. 1, Art. 55 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 18 para. 1 and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; Art. 31 para. 1 and Art. 41 para. 1 of the Vienna Convention on Diplomatic Relations, Federal Law Gazette No. 66/1966 as amended.

REASONING

A. Submissions of the Parties and Procedural History

The complainant stated in his submission to the Data Protection Authority dated October 30, 2022, that the defendant had publicly posted a list of all eligible voters in the context of the n*** elections. It was visible to all passersby the name, date of birth, and voter registration number.

The Data Protection Authority informed the unrepresented complainant by letter dated November 9, 2022, about its anticipated lack of jurisdiction and granted the complainant the opportunity to withdraw his complaint.

The complainant did not respond further.

B. Subject of the Complaint

Based on the submissions of the complainant, it follows that the subject of the complaint is whether the defendant violated the complainant's right to confidentiality by publishing the complainant's name, date of birth, and voter registration number in the context of the n*** elections.

However, the question of the jurisdiction of the Data Protection Authority must first be clarified.

C. Findings of Fact

The defendant is the Embassy of the Republic N*** in Vienna.

In the context of the n*** elections 2022, a voter register, which included the name, date of birth, and voter registration number of the complainant, was posted on the outside of the defendant's office building and was thus accessible to the public.

Assessment of Evidence: The findings made are based on the submissions of the complainant in his initiating submission dated October 30, 2022, which also included a photographic depiction of the published voter register.

D. From a legal perspective, it follows:

1. According to Art. 55 para. 1 GDPR, each supervisory authority is responsible for the fulfillment of the tasks and the exercise of the powers assigned to it by the GDPR within the territory of its own member state.

The Data Protection Authority is thus the supervisory authority responsible for the territory of the Republic of Austria (cf. § 18 para. 1 DSG).

However, it should be noted that the complaint is directed against the embassy of a third state.

Modern international law does not classify embassies as enclaves of another state but assigns them to the receiving state (cf. Doebling, International Law, § 12, para. 676). Since the embassy of the Republic N*** is located in Vienna, it is thus part of Austrian territory, and the Data Protection Authority would therefore generally be the supervisory authority responsible for data processing there according

to Art. 55 para. 1 GDPR.

However, Art. 55 para. 2 GDPR already contains the exception that there is no jurisdiction of the local supervisory authority if the processing is carried out by authorities or private entities of other member states based on Art. 6 para. 1 lit. c or e GDPR. In this case, the supervisory authority of the affected member state is responsible, and the procedure according to Art. 56 GDPR does not apply.

It follows initially that the Austrian Data Protection Authority has no jurisdiction over authorities or private entities whose data processing is attributable to another member state.

Consequently, this must also apply to authorities or private entities whose data processing is attributable to a third state – here: the Embassy of the Republic N***.

2. In this context, it should also be noted the Vienna Convention on Diplomatic Relations, which has been ratified by both the Republic of Austria and the Republic of N***:

This Convention provides, at various points, for privileges and immunities of missions and diplomatic personnel from the exercise of domestic state authority (see, for example, Art. 22 and Art. 31).

According to Art. 31 para. 1 of the Vienna Convention on Diplomatic Relations, diplomats enjoy immunity from criminal jurisdiction, civil jurisdiction, and administrative jurisdiction of the receiving state, except in certain cases that are not relevant here, even if they are obliged under Art. 41 para. 1 of the same to respect the laws and other legal provisions of the receiving state – thus also the GDPR, which is equated with domestic laws as a directly applicable legal act of the European Union.

By virtue of this international legal provision, the ambassador sent by the Republic of N*** or the mission under his authority cannot be held accountable by the data protection authority (see essentially Schmidl, in Jahnel (ed.) Yearbook Data Protection Law 2021, The GDPR and International Organizations, p. 25) and it is also not evident that he acted solely in a private law capacity in the context of the publication of the voter register subject to the complaint (see Reinisch (ed.), Handbook of International Law⁵ VI Rz 1557, according to which sanctioning would be conceivable if diplomatic personnel acts solely in a private law capacity).

Consequently, the complaint was to be dismissed due to the internationally enshrined immunity of the data protection officer.

It was therefore to be decided accordingly.